



SERVICE OF PROCESS

What do I do after I file the complaint?

If you have paid the filing fee for your civil lawsuit, you will next have to serve a copy of the summons and complaint on each defendant. This service is necessary to inform the defendant that a legal proceeding has been brought against him. The rules for effecting service of the summons and complaint can be found in Rule 4 of the Federal Rules of Civil Procedure.

You should keep the original summons that has been signed and sealed and file it with the Clerk's Office, along with a proof of service for each defendant. Your lawsuit will not proceed until you serve copies of the summons and complaint on each named defendant.

If you are proceeding *in forma pauperis*, officers of the Court will serve your summons and complaint for you. You will be asked to supply information regarding where the defendants may be located so that the complaint and summons may be served.

When must the summons and complaint be served?

Rule 4(m) of the Federal Rules of Civil Procedure requires you to serve each defendant or obtain a waiver of service within 90 days after the complaint is filed in the Clerk's Office. If you do not meet that deadline and you do not show the presiding judge that you had a good reason for not serving a defendant, the judge may dismiss all claims against any defendant who was not served.

Who can serve the summons and complaint?

The easiest way to serve a complaint is to hire a professional process server. If you do not want to or cannot afford to hire a process server, you can also ask a friend, family member, or any other person over 18 years old to personally serve the summons and complaint for you. But you may not deliver the summons and complaint yourself.

Do I have to serve the summons and complaint?

Defendants may sometimes be asked if they will "waive" – that is, not require – formal service of the summons and complaint and will instead agree to receive the documents by mail. Under Rule 4 of the Federal Rules of Civil Procedure, you can ask for a waiver of service from any defendant **except**:



- A minor or incompetent person in the United States;
- The United States government, its agencies, corporations, officers or employees;
- A state or local government; or
- A foreign state.

Rule 4(d) of the Federal Rules of Civil Procedure explains how to seek waiver of service. Waiver forms may be requested from the Clerk's Office or found on the Court's website. In general, waiver of service is less costly and less burdensome than formal service for all parties and should be sought wherever possible.

What is the proper way to serve the summons and complaint if the defendants do not waive service?

The proper methods for effecting service of process can be found in Rule 4 of the Federal Rule of Civil Procedure. There are different requirements for serving different kinds of defendants – for example, the rules for serving an individual or a business differ from the rules for serving the State of Minnesota, which in turn differ from the rules for serving the United States. Review Rule 4 carefully.

How do I prove that a defendant was served?

Unless a defendant waives personal service and accepts service by mail, you must file a proof of service with the Court. The person who performed the service of process must complete and sign a proof of service form. Proof of service forms are available in the Clerk's Office or the Court's website. After each defendant has been served, submit the original summons along with the proofs of service to the Clerk's Office for filing.